

		ordered, jointly and severally with their attorney of record, to pay \$1,200 in monetary sanctions to Defendant's counsel within 30 days. As of the hearing date of this motion, it appears that only Plaintiff Lissa M. Bareno has sat for her deposition. Defendant's counsel declares that Ms. Bareno produced documents and responded to Form Interrogatories, but does not address the Special Interrogatories, written responses to Requests for Production or monetary sanctions. (Tamer Decl. ¶¶3-7.) Plaintiffs contend that Mr. Bicknell is not refusing to appear for his deposition, and has offered to appear by video, but that was unacceptable to Defendant. Mr. Bicknell claims to be out of the country, but is willing to appear for his deposition in August. The opposition does not address Mr. Bicknell's responses to written discovery or payment of monetary sanctions. (Tamer Decl. ¶¶ 8-15.) Nor does counsel indicate that counsel has paid either monetary sanction. (See, generally, Tamer Decl.) The Court is troubled by this failure to comply with its previous orders, without sufficient explanation. The Court nonetheless does not find that the drastic remedy of terminating sanctions is justified at this juncture. The Court will instead impose a lesser monetary sanction of \$2,025 (4.5 hrs at \$450/hr) against Plaintiffs' attorney, Steven Tamer. Sanctions are due and payable to Defendant's counsel within 30 days of this order. Additionally, the Court orders Plaintiffs to fully comply with this Court's April 16 and May 14 orders. Should Plaintiffs fail to comply with those orders within 30 days, the Court will consider granting a subsequent defense motion for terminating sanctions. Defendant to give notice.
12.	30-2024-01443133 ESC-TOY LTD. Vs. Maschoff Brennan Gilmore & Israelsen, PLLC	1. Case Management Conference 2. 2 Motions to Compel <u>Motion to Compel Further Responses to Special Interrogatories (ROA #158)</u> <u>Motion to Compel Further Responses to Request for Production (ROA #157)</u> Given the late filed Oppositions and supporting documents, filed 8/10/26, the Court CONTINUES the hearing on these 2 motions to 8/20/26 at 1:30pm in C34. Any reply briefing in response to the opposition documents to be filed by 8/14/26. No additional briefing. Clerk to give notice.
13.	30-2024-01379003 Dib vs. Daher	1. Motion for Summary Judgment and/or Adjudication 2. Motion for Summary Judgment and/or Adjudication There are two motions for summary judgment on calendar: one brought by Defendant Doran Andry ("Defendant Andry") and one brought by Defendant 11WINDS11, LLC ("Defendant 11Winds") Defendant Andry and Defendant 11Winds both move for an order granting summary judgment in their favor on all five causes of action asserted in the First Amended Complaint, which include the: (1) first cause of action for fraudulent transfers in violation of Civil Code section

3439.04, (2) second cause of action for conspiracy to fraudulently convey property, (3) third cause of action for aiding and abetting fraudulent conveyance of property, (4) fourth cause of action for accounting, (5) fifth cause of action for imposition of constructive trust and/or preliminary and permanent injunction, and account.

Plaintiffs Joseph Dib and R&R Life is Amazing (“Plaintiffs”) oppose both motions.

“Summary judgment is properly granted if ‘there is no triable issue as to any material fact and ... the moving party is entitled to a judgment as a matter of law.’” (*Mitchell v. Hutchinson* (2025) 112 Cal.App.5th 1012, 1016 [citing Code Civ. Proc., § 437c, subd. (c)]). “A defendant seeking summary judgment must show that the plaintiff cannot establish at least one element of the cause of action.” (*Id.* [citing *Regents of University of California v. Superior Court* (2018) 4 Cal.5th 607, 618 and Code Civ. Proc., § 437c, subd. (p)(2)]). “If the defendant makes this showing, ‘the burden shifts to the plaintiff ... to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.’” (*Id.* [citing Code Civ. Proc., § 437c, subd. (p)(2)]).

Pursuant to Code of Civil Procedure sections 437c, the separate statement shall only set forth material facts and there must be no triable issue as to any material fact presented in the separate statement. (Code Civ. Proc., § 437c, subd. (b) and Cal. Rules of Court, rule 3.1320, subd.(d)(1).) Accordingly, if one material fact is disputable, then the issue fails.

Such is the case here since each issue presented in the separate statements of the “undisputed material facts” relies upon the undisputed showing that the Defendants were not a party to the sale of the Subject Property. Defendants both argue that they did not submit an offer to purchase the Subject Property as individual, never entered into an agreement with anyone to purchase the Subject Property as an individual, never signed any monies to purchase the Subject Property as an individual, never purchased and/or had any ownership in the Subject Property, and never transferred any interest in the Subject Property. Defendant Andry also states that the “Subject Property was purchased on November 8, 2022, by 8217 Poinsettia Drive LLC.”

Importantly, however, the First Amended Complaint expressly alleges that Poinsettia LLC is an alter ego shell entitled of Defendant Andry and that all of the corporations discussed in the complaint are alter egos, agents, and co-conspirators of Defendant Daher. (FAC, ¶¶ 20, 22, 21, 26(c), and 27.) Thus, to establish there are no triable issues of material fact as to Defendant Andry’s liability, he must also show that he is not liable for the actions of his alleged alter egos, agents, and co-conspirators: Daher, K & A, Pointsettia LLC, and 11 Winds11, LLC. Likewise, 11Winds must establish that it is not the alter ego, agent, or co-conspirator of Defendant Daher and therefore responsible for the Defendant Daher’s conduct.

The Court finds that there are triable issues of material facts as to these issues based on the evidence submitted in support of the opposition concerning the relationships between Defendant Andry, Defendant 11Winds, and Defendant Daher as well the other entity Defendants. The Court is also persuaded by Plaintiffs that Defendant’s deposition testimonies compared with their declarations in support of the motion further create triable issues of fact and credibility issues that cannot be resolved on a motion for summary judgment.

Given the above, Defendants have not established that they were not part of the sale, transfer, or purchase of the Subject Property because there are triable issues of material fact as to the alter ego, agency, and coconspirator issues alleged in the First Amended Complaint.

	The Motions are DENIED. The Court declines to rule on the evidentiary objections submitted by Plaintiff as the Court need only rule on those evidentiary objections that it deems material to disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).) Defendants did not object to Plaintiffs' evidence and the Court finds Plaintiffs' evidence admissible. The Court declines to consider all new points, arguments, and evidence presented for the first time on reply. (See <i>Balboa Ins. Co. v. Aguirre</i> (1983) 149 Cal.App.3d 1002, 1010; <i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537-1538.) Plaintiff to give notice.
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